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Verbrauchte Zeit	23 Minuten

Frage 1

Vollständig

Erreichbare Punkte: 1,00

Private Law: Which of these does fault liability in Austria not require?

- ☒ Wrongfulness
- ☐ Intentional conduct
- ☒ Compensable damage
- ☒ Causal link

Frage 2

Vollständig

Erreichbare Punkte: 1,00

Private Law: What problems do you identify in executing a contract by an AI system if there is no way to reverse the results from that process? (tick all the correct answers)

- ☒ coding errors may bring with it results unwanted by either party
- ☐ a consumer may have a right to withdraw from the contract
- ☒ the underlying contract could be invalid, e.g. because the party is of minor age
- ☐ doing that by the use of AI is overly expensive

Frage 3

Vollständig

Erreichbare Punkte: 1,00

AI Regulation (draft): Which statements about the AI Regulation draft (June 2023 draft) are true? (tick all the correct answers)

- ☒ An AI system is not always a high-risk AI system.
- ☒ An example of an AI system with increased transparency would be an intelligent medical device for disease detection used in a hospital.
- ☐ Prohibited Artificial Intelligence Techniques: the use of 'real-time' remote biometric identification systems in publicly accessible spaces by law enforcement authorities or on their behalf for the purpose of law enforcement is forbidden without exception.
- ☒ A chatbot used on a commercial website (e.g. supermarket) is usually not considered a high-risk AI system.

Frage 4

Vollständig

Erreichbare Punkte: 1,00

Private Law: Imagine, an automated vehicle causing an accident. Who of these could be, in principle, liable for the damage caused under Austrian law? (tick all the correct answers)

- ☒ the importer
- ☒ the producer
- ☒ the registered keeper
- ☐ the driver

Frage 5

Vollständig

Erreichbare Punkte: 1,00

Private Law: By what means can two parties conclude a formally valid contract in Austria and many other continental European jurisdictions? (tick all the correct answers)

- ☐ by an exchange of e-mails
- ☒ by a written piece of paper
- ☒ by clicking on buttons in an e-commerce store
- ☐ by speaking to each other on the phone

Frage 6

Vollständig

Erreichbare Punkte: 1,00

Private Law: For what damages will the producer be liable? (tick all the correct answers)

- ☒ personal injury
- ☒ damages to property other than the product
- ☐ pure nominal loss, e.g. for lacking the opportunity to use the product
- ☐ damages to the product itself

Frage 7

Vollständig

Erreichbare Punkte: 1,00

GDPR: You want to start your own company and offer your newly developed AI solution to customers within the European Union. Which of the following steps do you inter alia necessarily have to take before processing? (tick all the correct answers)

- ☒ Prepare a privacy policy and make it available to data subjects.
- ☒ Designate a Data Protection Officer (DPO) if necessary.
- ☒ Prepare a record of processing activities.
- ☐ Prepare consent texts and the corresponding processes to gather consent of data subjects where necessary.

Frage 8

Vollständig

Erreichbare Punkte: 1,00

AI Regulation (draft): Which administrative fines might be imposed upon a company if it is in violation of the AI act? (tick the correct answer)

- ☐ Up to EUR 100.000.000,00 or, if the offender is a company, up to 15% of its total worldwide annual turnover for the preceding financial year, whichever is higher, for certain violations.
- ☒ Up to EUR 40.000.000,00 or, if the offender is a company, up to 7% of its total worldwide annual turnover for the preceding financial year, whichever is higher, for certain violations.
- ☐ None, as the first strike is always "free".
- ☐ It depends on the type of the violation, but in no case will it exceed the amount of EUR 50.000,00.

Frage 9

Vollständig

Erreichbare Punkte: 1,00

Legal Basics: What can be considered "Law"? (tick the correct answer)

- ☐ An AI ethics whitepaper by an NGO.
- ☐ Technical standards such as ISO or ÖNORMs
- ☒ Rules that have been formally enacted by a legislative process.
- ☐ Rules which are socially accepted.

Frage 10

Vollständig

Erreichbare Punkte: 1,00

Legal Basics: Is there, as of today, in force any Austrian Law or European Regulation dealing exclusively with regulating AI? (tick the correct answer)

- ☒ No, not yet, but there will be one in due course.
- ☐ No, and there will be none in the foreseeable future.
- ☐ Yes.
- ☐ Yes, but it will be abolished in due course.

Frage 11

Vollständig

Erreichbare Punkte: 1,00

Legal Basics: Who of these can, in principle, enact new laws in Austria? (tick the correct answer)

- ☐ The US government.
- ☒ The Austrian State.
- ☐ An Austrian company that has exceeded a certain company size.
- ☐ God.

Frage 12

Vollständig

Erreichbare Punkte: 1,00

Private Law: The European Commission has presented two new proposals on liability and the use of AI recently. What do they deal with? (tick all the correct answers)

- ☒ The burden of proof regarding damages and causal link for damage claims
- ☒ AI-related questions of product liability
- ☐ road safety regulations for self-driving vehicles
- ☐ AI-related questions of contract law

Frage 13

Vollständig

Erreichbare Punkte: 1,00

GDPR: Which statements about the GDPR are true? (tick all the correct answers)

- ☒ Processing of personal data requires a legal basis pursuant to the GDPR, or – in case of opening clauses – to national data protection law within the scope of these opening clauses.
- ☒ The Controller determines the purposes and means of processing.
- ☒ The GDPR is not applicable for data of deceased persons.
- ☐ One fundamental principle relating to the processing of personal data is called "data ethics".

Frage 14

Vollständig

Erreichbare Punkte: 1,00

Private Law: What of these do you identify as the main legal problems of enforcing contracts by the use of electronic means, e.g. by simply shutting down someone's electronic device or by altering the balance on someone's bank account?

- ☒ this might violate the affected person's to be heard before a court
- ☒ this could potentially harm the affected person, e.g. if the algorithm deactivates a medical device
- ☐ the affected person may feel uncomfortable about the contract being enforced
- ☐ if all contracts are enforced automatically, too many lawyers will be unemployed

Frage 15

Vollständig

Erreichbare Punkte: 1,00

Private Law: Which of these is governed by a harmonised set of rules within the 27 Member States of the European Union?

- ☐ Road Traffic Rules
- ☐ Contract Law
- ☐ Fault Liability
- ☒ Product Liability

Frage 16

Vollständig

Erreichbare Punkte: 1,00

Private Law: What does a consumer in the European Union need to confirm directly before placing his or her order? (tick the correct answer)

- ☐ his or her adult age
- ☒ his or her obligation to pay
- ☐ whether he or she is a consumer or not
- ☐ that he or she can make use of the goods

Frage 17

Vollständig

Erreichbare Punkte: 1,00

AI Regulation (draft): As of now, which obligations do providers of high-risk AI systems face pursuant to the AI act draft (June 2023 version)? (tick all the correct answers)

- ☐ pay an "implementation fee" to the national competent authority prior to the introduction of the AI system.
- ☒ put a quality management system in place that ensures compliance
- ☒ immediately inform the national competent authorities if a high-risk AI system presents a risk and that risk is known to the provider
- ☒ keep the logs automatically generated by their high-risk AI-system to the extent that those logs are under their control

Frage 18

Vollständig

Erreichbare Punkte: 1,00

Private Law: Which of these does strict liability not require?

- ☐ Adequate causation
- ☐ A legal basis
- ☐ Compensable damage
- ☒ Fault

Frage 19

Vollständig

Erreichbare Punkte: 1,00

GDPR: What are the main consequences for a company if it is in violation of the GDPR? (tick all the correct answers)

- ☒ The company may face a loss of reputation.
- ☐ Data subjects may claim material and/or immaterial damages before the European parliament.
- ☐ The company may face an administrative fine up to EUR 50 Mio or up to 6% of the total worldwide annual turnover from the preceding financial year, whichever is higher.
- ☒ The supervisory authority may impose a ban on processing.

Frage 20

Vollständig

Erreichbare Punkte: 1,00

GDPR: Which of the following data is considered a special category of personal data? (tick all the correct answers)

- ☒ political opinion of a data subject.
- ☐ Name and date of birth of a data subject.
- ☒ Trade union membership of a data subject.
- ☐ profession of a data subject.